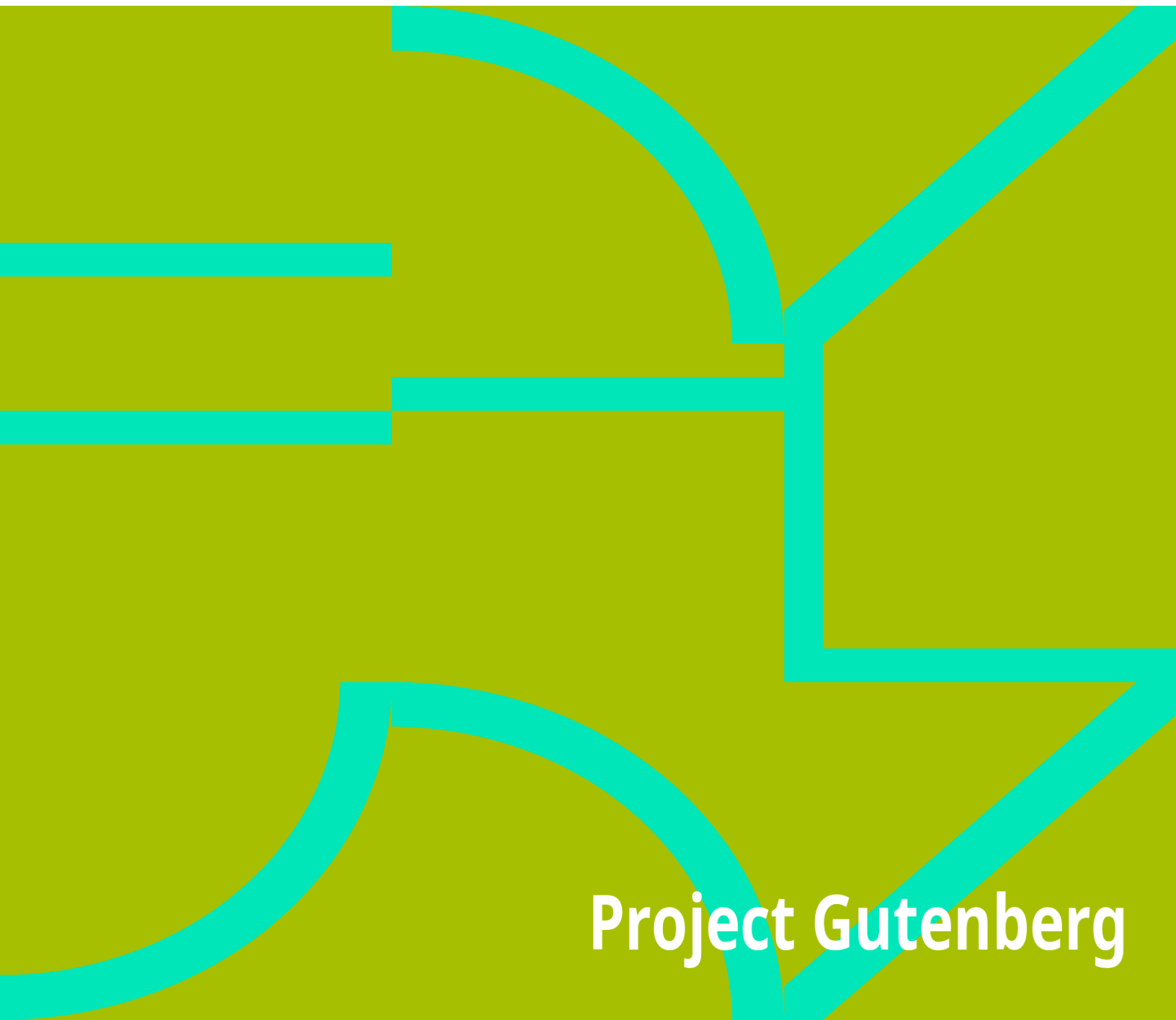


# Findelkind

Ouida



Project Gutenberg

# Findelkind

Ouida

Project Gutenberg

## **The Project Gutenberg eBook of Findelkind**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Findelkind

Author: Ouida

Release date: June 1, 1998 [eBook #1367]

Most recently updated: October 29, 2024

Language: English

Other information and formats: [www.gutenberg.org/ebooks/1367](http://www.gutenberg.org/ebooks/1367)

Credits: Produced by An Anonymous Volunteer, and David Widger

\*\*\* START OF THE PROJECT GUTENBERG EBOOK FINDELKIND

\*\*\*

# **FINDELKIND**



## By Louise de la Ramee (AKA Ouida)

*Works of Louisa de la Ramee ("Ouida")*

*Findelkind*  
*Muriella*  
*A Dog of Flanders*  
*The Nurnberg Stove*  
*A Provence Rose*  
*Two Little Wooden Shoes*

---

# FINDELKIND

There was a little boy, a year or two ago, who lived under the shadow of Martinswand. Most people know, I should suppose, that the Martinswand is that mountain in the Oberinnthal, where, several centuries past, brave Kaiser Max lost his footing as he stalked the chamois, and fell upon a ledge of rock, and stayed there, in mortal peril, for thirty hours, till he was rescued by the strength and agility of a Tyrol hunter,—an angel in the guise of a hunter, as the chronicles of the time prefer to say.

The Martinswand is a grand mountain, being one of the spurs of the greater Sonnstein, and rises precipitously, looming, massive and lofty, like a very fortress for giants, where it stands right across that road which, if you follow it long enough, takes you through Zell to Landeck,—old, picturesque, poetic Landeck, where Frederick of the Empty Pockets rhymed

his sorrows in ballads to his people,—and so on by Bludenz into Switzerland itself, by as noble a highway as any traveller can ever desire to traverse on a summer's day. It is within a mile of the little burg of Zell, where the people, in the time of their emperor's peril, came out with torches and bells, and the Host lifted up by their priest, and all prayed on their knees underneath the steep, gaunt pile of limestone, that is the same today as it was then, whilst Kaiser Max is dust; it soars up on one side of this road, very steep and very majestic, having bare stone at its base, and being all along its summit crowned with pine woods; and on the other side of the road are a little stone church, quaint and low, and gray with age, and a stone farmhouse, and cattle-sheds, and timber-sheds, all of wood that is darkly brown from time; and beyond these are some of the most beautiful meadows in the world, full of tall grass and countless flowers, with pools and little estuaries made by the brimming Inn River that flows by them; and beyond the river are the glaciers of the Sonnststein and the Selrain and the wild Arlberg region, and the golden glow of sunset in the west, most often seen from here through the veil of falling rain.

At this farmhouse, with Martinswand towering above it, and Zell a mile beyond, there lived, and lives still, a little boy who bears the old historical name of Findelkind, whose father, Otto Korner, is the last of a sturdy race of yeomen, who had fought with Hofer and Haspinger, and had been free men always.

Findelkind came in the middle of seven other children, and was a pretty boy of nine years, with slenderer limbs and paler cheeks than his rosy brethren, and tender dreamy eyes that had the look, his mother told him, of seeking stars in midday: *de chercher midi a quatorze heures*, as the French have it. He was a good little lad, and seldom gave any trouble from disobedience, though he often gave it from forgetfulness. His father angrily complained that he was always in the clouds,—that is, he was always dreaming, and so very often would spill the milk out of the pails, chop his own fingers instead of the wood, and stay watching the swallows when he was sent to draw water. His brothers and sisters were always making fun of him; they were sturdier, ruddier, and merrier children than he was, loved romping and climbing, and nutting, thrashing the walnut-trees and sliding down snow-drifts, and got into mischief of a more common and childish sort than Findelkind's freaks of fancy. For, indeed, he was a very fanciful little boy: everything around had tongues for him; and he would sit for

hours among the long rushes on the river's edge, trying to imagine what the wild green-gray water had found in its wanderings, and asking the water-rats and the ducks to tell him about it; but both rats and ducks were too busy to attend to an idle little boy, and never spoke, which vexed him.

Findelkind, however, was very fond of his books: he would study day and night, in his little ignorant, primitive fashion. He loved his missal and his primer, and could spell them both out very fairly, and was learning to write of a good priest in Zirl, where he trotted three times a week with his two little brothers. When not at school, he was chiefly set to guard the sheep and the cows, which occupation left him very much to himself, so that he had many hours in the summer-time to stare up to the skies and wonder—wonder—wonder about all sorts of things; while in the winter—the long, white, silent winter, when the post-wagons ceased to run, and the road into Switzerland was blocked, and the whole world seemed asleep, except for the roaring of the winds—Findelkind, who still trotted over the snow to school in Zirl, would dream still, sitting on the wooden settle by the fire, when he came home again under Martinswand. For the worst—or the best—of it all was that he was Findelkind.

This is what was always haunting him. He was Findelkind; and to bear this name seemed to him to mark him out from all other children, and to dedicate him to heaven. One day, three years before, when he had been only six years old, the priest in Zirl, who was a very kindly and cheerful man, and amused the children as much as he taught them, had not allowed Findelkind to leave school to go home, because the storm of snow and wind was so violent, but had kept him until the worst should pass, with one or two other little lads who lived some way off, and had let the boys roast a meal of apples and chestnuts by the stove in his little room, and, while the wind howled and the blinding snow fell without, had told the children the story of another Findelkind,—an earlier Findelkind, who had lived in the flesh on Arlberg as far back as 1381, and had been a little shepherd lad, "just like you," said the good man, looking at the little boys munching their roast crabs, and whose country had been over there, above Stuben, where Danube and Rhine meet and part.

The pass of Arlberg is even still so bleak and bitter that few care to climb there; the mountains around are drear and barren, and snow lies till midsummer, and even longer sometimes. "But in the early ages," said the

priest (and this is quite a true tale that the children heard with open eyes, and mouths only not open because they were full of crabs and chestnuts), "in the early ages," said the priest to them, "the Arlberg was far more dreary than it is now. There was only a mule-track over it, and no refuge for man or beast; so that wanderers and peddlers, and those whose need for work or desire for battle brought them over that frightful pass, perished in great numbers, and were eaten by the bears and the wolves. The little shepherd boy Findelkind—who was a little boy five hundred years ago, remember," the priest repeated—"was sorely disturbed and distressed to see these poor dead souls in the snow winter after winter, and seeing the blanched bones lie on the bare earth, unburied, when summer melted the snow. It made him unhappy, very unhappy; and what could he do, he a little boy keeping sheep? He had as his wages two florins a year; that was all; but his heart rose high, and he had faith in God. Little as he was, he said to himself he would try and do something, so that year after year those poor lost travellers and beasts should not perish so. He said nothing to anybody, but he took the few florins he had saved up, bade his master farewell, and went on his way begging,—a little fourteenth century boy, with long, straight hair, and a girdled tunic, as you see them," continued the priest, "in the miniatures in the black-letter missal that lies upon my desk. No doubt heaven favoured him very strongly, and the saints watched over him; still, without the boldness of his own courage, and the faith in his own heart, they would not have done so. I suppose, too, that when knights in their armour, and soldiers in their camps, saw such a little fellow all alone, they helped him, and perhaps struck some blows for him, and so sped him on his way, and protected him from robbers and from wild beasts. Still, be sure that the real shield and the real reward that served Findelkind of Arlberg was the pure and noble purpose that armed him night and day. Now, history does not tell us where Findelkind went, nor how he fared, nor how long he was about it; but history does tell us that the little barefooted, long-haired boy, knocking so loudly at castle gates and city walls in the name of Christ and Christ's poor brethren, did so well succeed in his quest that before long he had returned to his mountain home with means to have a church and a rude dwelling built, where he lived with six other brave and charitable souls, dedicating themselves to St. Christopher, and going out night and day to the sound of the Angelus, seeking the lost and weary. This is really what Findelkind of Arlberg did five centuries ago, and did so quickly that his



fraternity of St. Christopher, twenty years after, numbered among its members archdukes, and prelates, and knights without number, and lasted as a great order down to the days of Joseph II. This is what Findelkind in the fourteenth century did, I tell you. Bear like faith in your hearts, my children; and though your generation is a harder one than this, because it is without faith, yet you shall move mountains, because Christ and St. Christopher will be with you."

Then the good man, having said that, blessed them, and left them alone to their chestnuts and crabs, and went into his own oratory to prayer. The other boys laughed and chattered; but Findelkind sat very quietly, thinking of his namesake, all the day after, and for many days and weeks and months this story haunted him. A little boy had done all that; and this little boy had been called Findelkind: Findelkind, just like himself.

It was beautiful, and yet it tortured him. If the good man had known how the history would root itself in the child's mind, perhaps he would never have told it; for night and day it vexed Findelkind, and yet seemed beckoning to him and crying, "Go thou and do likewise!"

But what could he do?

There was the snow, indeed, and there were the mountains, as in the fourteenth century, but there were no travellers lost. The diligence did not go into Switzerland after autumn, and the country people who went by on their mules and in their sledges to Innsbruck knew their way very well, and were never likely to be adrift on a winter's night, or eaten by a wolf or a bear.

When spring came, Findelkind sat by the edge of the bright pure water among the flowering grasses, and felt his heart heavy. Findelkind of Arlberg who was in heaven now must look down, he fancied, and think him so stupid and so selfish, sitting there. The first Findelkind, a few centuries before, had trotted down on his bare feet from his mountain pass, and taken his little crook, and gone out boldly over all the land on his pilgrimage, and knocked at castle gates and city walls in Christ's name, and for love of the poor! That was to do something indeed!

This poor little living Findelkind would look at the miniatures in the priest's missal, in one of which there was the little fourteenth-century boy, with long hanging hair and a wallet and bare feet, and he never doubted that it was the portrait of the blessed Findelkind who was in heaven; and he

wondered if he looked like a little boy there, or if he were changed to the likeness of an angel.

"He was a boy just like me," thought the poor little fellow, and he felt so ashamed of himself,—so very ashamed; and the priest had told him to try and do the same. He brooded over it so much, and it made him so anxious and so vexed, that his brothers ate his porridge and he did not notice it, his sisters pulled his curls and he did not feel it, his father brought a stick down on his back, and he only started and stared, and his mother cried because he was losing his mind, and would grow daft, and even his mother's tears he scarcely saw. He was always thinking of Findelkind in heaven.

When he went for water, he spilt one-half; when he did his lessons, he forgot the chief part; when he drove out the cow, he let her munch the cabbages; and when he was set to watch the oven he let the loaves burn, like great Alfred. He was always busied thinking, "Little Findelkind that is in heaven did so great a thing: why may not I? I ought! I ought!" What was the use of being named after Findelkind that was in heaven, unless one did something great, too?

Next to the church there is a little stone lodge, or shed, with two arched openings, and from it you look into the tiny church, with its crucifixes and relics, or out to great, bold, sombre Martinswand, as you like best; and in this spot Findelkind would sit hour after hour while his brothers and sisters were playing, and look up at the mountains or on to the altar, and wish and pray and vex his little soul most wofully; and his ewes and his lambs would crop the grass about the entrance, and bleat to make him notice them and lead them farther afield, but all in vain. Even his dear sheep he hardly heeded, and his pet ewes, Katte and Greta, and the big ram Zips, rubbed their soft noses in his hand unnoticed. So the summer droned away,—the summer that is so short in the mountains, and yet so green and so radiant, with the torrents tumbling through the flowers, and the hay tossing in the meadows, and the lads and lasses climbing to cut the rich, sweet grass of the alps. The short summer passed as fast as a dragon-fly flashes by, all green and gold, in the sun; and it was near winter once more, and still Findelkind was always dreaming and wondering what he could do for the good of St. Christopher; and the longing to do it all came more and more into his little heart, and he puzzled his brain till his head ached. One autumn morning, whilst yet it was dark, Findelkind made his mind up, and rose

before his brothers, and stole down-stairs and out into the air, as it was easy to do, because the house-door never was bolted. He had nothing with him; he was barefooted, and his school-satchel was slung behind him, as Findelkind of Arlberg's wallet had been five centuries before.

He took a little staff from the piles of wood lying about, and went out on to the highroad, on his way to do heaven's will. He was not very sure what that divine will wished, but that was because he was only nine years old, and not very wise; but Findelkind that was in heaven had begged for the poor; so would he.

His parents were very poor, but he did not think of them as in any want at any time, because he always had his bowlful of porridge and as much bread as he wanted to eat. This morning he had nothing to eat; he wished to be away before any one could question him.

It was quite dusk in the fresh autumn morning. The sun had not risen behind the glaciers of the Stubai Thal, and the road was scarcely seen; but he knew it very well, and he set out bravely, saying his prayers to Christ, and to St. Christopher, and to Findelkind that was in heaven.

He was not in any way clear as to what he would do, but he thought he would find some great thing to do somewhere, lying like a jewel in the dust; and he went on his way in faith, as Findelkind of Arlberg had done before him.

His heart beat high, and his head lost its aching pains, and his feet felt light; so light as if there were wings to his ankles. He would not go to Zirl, because Zirl he knew so well, and there could be nothing very wonderful waiting there; and he ran fast the other way. When he was fairly out from under the shadow of Martinswand, he slackened his pace, and saw the sun come on his path, and the red day redden the gray-green water, and the early Stellwagen from Landeck, that had been lumbering along all the night, overtook him.

He would have run after it, and called out to the travellers for alms, but he felt ashamed. His father had never let him beg, and he did not know how to begin.

The Stellwagen rolled on through the autumn mud, and that was one chance lost. He was sure that the first Findelkind had not felt ashamed when he had knocked at the first castle gates.

By and by, when he could not see Martinswand by turning his head back ever so, he came to an inn that used to be a post-house in the old days when men travelled only by road. A woman was feeding chickens in the bright clear red of the cold daybreak.

Findelkind timidly held out his hand. "For the poor!" he murmured, and doffed his cap.

The old woman looked at him sharply. "Oh, is it you, little Findelkind? Have you run off from school? Be off with you home! I haves mouths enough to feed here."

Findelkind went away, and began to learn that it is not easy to be a prophet or a hero in one's own country.

He trotted a mile farther, and met nothing. At last he came to some cows by the wayside, and a man tending them.

"Would you give me something to help make a monastery?" he said, timidly, and once more took off his cap. The man gave a great laugh. "A fine monk, you! And who wants more of these lazy drones? Not I."

Findelkind never answered: he remembered the priest had said that the years he lived in were very hard ones, and men in them had no faith.

Ere long he came to a big walled house, with turrets and grated casements,—very big it looked to him,—like one of the first Findelkind's own castles. His heart beat loud against his side, but he plucked up his courage, and knocked as loud as his heart was beating.

He knocked and knocked, but no answer came. The house was empty. But he did not know that; he thought it was that the people within were cruel, and he went sadly onward with the road winding before him, and on his right the beautiful impetuous gray river, and on his left the green Mittelgebirge and the mountains that rose behind it. By this time the day was up; the sun was glowing on the red of the cranberry shrubs, and the blue of the bilberry-boughs: he was hungry and thirsty and tired. But he did not give in for that; he held on steadily; he knew that there was near, somewhere near, a great city that the people called Sprugg, and thither he had resolved to go. By noontide he had walked eight miles, and came to a green place where men were shooting at targets, the tall, thick grass all around them; and a little way farther off was a train of people chanting and bearing crosses, and dressed in long flowing robes.

The place was the Hottinger Au, and the day was Saturday, and the village was making ready to perform a miracle-play on the morrow.

Findelkind ran to the robed singing-folk, quite sure that he saw the people of God. "Oh, take me, take me!" he cried to them; "do take me with you to do heaven's work."

But they pushed him aside for a crazy little boy that spoiled their rehearsing.

"It is only for Hotting folk," said a lad older than himself. "Get out of the way with you, Liebchen." And the man who carried the cross knocked him with force on the head, by mere accident; but Findelkind thought he had meant it.

Were people so much kinder five centuries before, he wondered, and felt sad as the many-coloured robes swept on through the grass, and the crack of the rifles sounded sharply through the music of the chanting voices. He went on, footsore and sorrowful, thinking of the castle doors that had opened, and the city gates that had unclosed, at the summons of the little long-haired boy whose figure was painted on the missal.

He had come now to where the houses were much more numerous, though under the shade of great trees,—lovely old gray houses, some of wood, some of stone, some with frescoes on them and gold and colour and mottoes, some with deep barred casements, and carved portals, and sculptured figures; houses of the poorer people now, but still memorials of a grand and gracious time. For he had wandered into the quarter of St. Nicholas in this fair mountain city, which he, like his country-folk, called Sprugg, though the government calls it Innsbruck.

He got out upon a long, gray, wooden bridge, and looked up and down the reaches of the river, and thought to himself, maybe this was not Sprugg but Jerusalem, so beautiful it looked with its domes shining golden in the sun, and the snow of the Soldstein and Branjoch behind them. For little Findelkind had never come so far as this before. As he stood on the bridge so dreaming, a hand clutched him, and a voice said:

"A whole kreutzer, or you do not pass!"

Findelkind started and trembled.

A kreutzer! he had never owned such a treasure in all his life.

"I have no money!" he murmured, timidly, "I came to see if I could get money for the poor."

The keeper of the bridge laughed.

"You are a little beggar, you mean? Oh, very well! Then over my bridge you do not go.

"But it is the city on the other side?"

"To be sure it is the city; but over nobody goes without a kreutzer."

"I never have such a thing of my own! never! never!" said Findelkind, ready to cry.

"Then you were a little fool to come away from your home, wherever that may be," said the man at the bridge-head. "Well, I will let you go, for you look a baby. But do not beg; that is bad."

"Findelkind did it!"

"Then Findelkind was a rogue and a vagabond," said the taker of tolls.

"Oh, no—no—no!"

"Oh, yes—yes—yes, little sauce-box; and take that," said the man, giving him a box on the ear, being angry at contradiction.

Findelkind's head drooped, and he went slowly over the bridge, forgetting that he ought to have thanked the toll-taker for a free passage. The world seemed to him very difficult. How had Findelkind done when he had come to bridges?—and, oh, how had Findelkind done when he had been hungry?

For this poor little Findelkind was getting very hungry, and his stomach was as empty as was his wallet.

A few steps brought him to the Goldenes Dachl.

He forgot his hunger and his pain, seeing the sun shine on all that gold, and the curious painted galleries under it. He thought it was real solid gold. Real gold laid out on a house-roof,—and the people all so poor! Findelkind began to muse, and wonder why everybody did not climb up there and take a tile off and be rich? But perhaps it would be wicked. Perhaps God put the roof there with all that gold to prove people. Findelkind got bewildered.

If God did such a thing, was it kind?

His head seemed to swim, and the sunshine went round and round with him. There went by him, just then, a very venerable-looking old man with

silver hair; he was wrapped in a long cloak. Findelkind pulled at the coat gently, and the old man looked down.

"What is it, my boy?" he asked.

Findelkind answered, "I came out to get gold: may I take it off that roof?"

"It is not gold, child, it is gilding."

"What is gilding?"

"It is a thing made to look like gold; that is all."

"It is a lie, then!"

The old man smiled. "Well, nobody thinks so. If you like to put it so, perhaps it is. What do you want gold for, you wee thing?"

"To build a monastery, and house the poor."

The old man's face scowled and grew dark, for he was a Lutheran pastor from Bavaria.

"Who taught you such trash?" he said, crossly.

"It is not trash. It is faith."

And Findelkind's face began to burn, and his blue eyes to darken and moisten. There was a little crowd beginning to gather, and the crowd was beginning to laugh. There were many soldiers and rifle-shooters in the throng, and they jeered and joked, and made fun of the old man in the long cloak, who grew angry then with the child. "You are a little idolater and a little impudent sinner!" he said, wrathfully, and shook the boy by the shoulder, and went away, and the throng that had gathered around had only poor Findelkind left to tease.

He was a very poor little boy indeed to look at, with his sheepskin tunic, and his bare feet and legs, and his wallet that never was to get filled.

"Where do you come from, and what do you want?" they asked; and he answered, with a sob in his voice:

"I want to do like Findelkind of Arlberg."

And then the crowd laughed, not knowing at all what he meant, but laughing just because they did not know, as crowds always will do. And only the big dogs that are so very big in this country, and are all loose, and free, and good-natured citizens, came up to him kindly, and rubbed against him, and made friends; and at that tears came into his eyes, and his courage rose, and he lifted his head.

"You are cruel people to laugh," he said, indignantly; "the dogs are kinder. People did not laugh at Findelkind. He was a little boy just like me, no better and no bigger, and as poor, and yet he had so much faith, and the world then was so good, that he left his sheep, and got money enough to build a church and a hospice to Christ and St. Christopher. And I want to do the same for the poor. Not for myself, no; for the poor! I am Findelkind too, and Findelkind of Arlberg that is in heaven speaks to me."

Then he stopped, and a sob rose again in his throat.

"He is crazy!" said the people, laughing, yet a little scared; for the priest at Zirl had said rightly, this is not an age of faith. At that moment there sounded, coming from the barracks, that used to be the Schloss in the old days of Kaiser Max and Mary of Burgundy, the sound of drums and trumpets and the tramp of marching feet. It was one of the corps of Jagers of Tyrol, going down from the avenue to the Rudolfplatz, with their band before them and their pennons streaming. It was a familiar sight, but it drew the street-throngs to it like magic: the age is not fond of dreamers, but it is very fond of drums. In almost a moment the old dark arcades and the river-side and the passages near were all empty, except for the women sitting at their stalls of fruit or cakes, or toys. They are wonderful old arched arcades, like the cloisters of a cathedral more than anything else, and the shops under them are all homely and simple,—shops of leather, of furs, of clothes, of wooden playthings, of sweet and wholesome bread. They are very quaint, and kept by poor folks for poor folks; but to the dazed eyes of Findelkind they looked like a forbidden paradise, for he was so hungry and so heart-broken, and he had never seen any bigger place than little Zirl.

He stood and looked wistfully, but no one offered him anything. Close by was a stall of splendid purple grapes, but the old woman that kept it was busy knitting. She only called to him to stand out of her light.

"You look a poor brat; have you a home?" said another woman, who sold bridles and whips and horses' bells, and the like.

"Oh, yes, I have a home,—by Martinswand," said Findelkind, with a sigh.

The woman looked at him sharply. "Your parents have sent you on an errand here?"

"No; I have run away."



"Run away? Oh, you bad boy!—unless, indeed,—are they cruel to you?"

"No; very good."

"Are you a little rogue, then, or a thief?"

"You are a bad woman to think such things," said Findelkind, hotly, knowing himself on how innocent and sacred a quest he was.

"Bad? I? Oh, ho!" said the old dame, cracking one of her new whips in the air, "I should like to make you jump about with this, you thankless little vagabond. Be off!"

Findelkind sighed again, his momentary anger passing; for he had been born with a gentle temper, and thought himself to blame much more readily than he thought other people were,—as, indeed, every wise child does, only there are so few children—or men—that are wise.

He turned his head away from the temptation of the bread and fruit stalls, for in truth hunger gnawed him terribly, and wandered a little to the left. From where he stood he could see the long, beautiful street of Teresa, with its oriels and arches, painted windows and gilded signs, and the steep, gray, dark mountains closing it in at the distance; but the street frightened him, it looked so grand, and he knew it would tempt him; so he went where he saw the green tops of some high elms and beeches. The trees, like the dogs, seemed like friends. It was the human creatures that were cruel.

At that moment there came out of the barrack gates, with great noise of trumpets and trampling of horses, a group of riders in gorgeous uniforms, with sabres and chains glancing and plumes tossing. It looked to Findelkind like a group of knights,—those knights who had helped and defended his namesake with their steel and their gold in the old days of the Arlberg quest. His heart gave a great leap, and he jumped on the dust for joy, and he ran forward and fell on his knees and waved his cap like a little mad thing, and cried out:

"Oh, dear knights! oh, great soldiers! help me! Fight for me, for the love of the saints! I have come all the way from Martinswand, and I am Findelkind, and I am trying to serve St. Christopher like Findelkind of Arlberg."

But his little swaying body and pleading hands and shouting voice and blowing curls frightened the horses; one of them swerved and very nearly settled the woes of Findelkind for ever and aye by a kick. The soldier who

rode the horse reined him in with difficulty. He was at the head of the little staff, being indeed no less or more than the general commanding the garrison, which in this city is some fifteen thousand strong. An orderly sprang from his saddle and seized the child, and shook him, and swore at him. Findelkind was frightened; but he shut his eyes and set his teeth, and said to himself that the martyrs must have had very much worse than these things to suffer in their pilgrimage. He had fancied these riders were knights, such knights as the priest had shown him the likeness of in old picture-books, whose mission it had been to ride through the world succouring the weak and weary, and always defending the right.

"What are your swords for, if you are not knights?" he cried, desperately struggling in his captor's grip, and seeing through his half-closed lids the sunshine shining on steel scabbards.

"What does he want?" asked the officer in command of the garrison, whose staff all this bright and martial array was. He was riding out from the barracks to an inspection on the Rudolfplatz. He was a young man, and had little children himself, and was half amused, half touched, to see the tiny figure of the little dusty boy.

"I want to build a monastery, like Findelkind of Arlberg, and to help the poor," said our Findelkind, valorously, though his heart was beating like that of a little mouse caught in a trap; for the horses were trampling up the dust around him, and the orderly's grip was hard.

The officers laughed aloud; and indeed he looked a poor little scrap of a figure, very ill able to help even himself.

"Why do you laugh?" cried Findelkind, losing his terror in his indignation, and inspired with the courage which a great earnestness always gives. "You should not laugh. If you were true knights, you would not laugh; you would fight for me. I am little, I know,—I am very little,—but he was no bigger than I; and see what great things he did. But the soldiers were good in those days; they did not laugh and use bad words—"

And Findelkind, on whose shoulder the orderly's hold was still fast, faced the horses, which looked to him as huge as Martinswand, and the swords, which he little doubted were to be sheathed in his heart.

The officers stared, laughed again, then whispered together, and Findelkind heard them say the word "crazed." Findelkind, whose quick little ears were both strained like a mountain leveret's, understood that the great

men were saying among themselves that it was not safe for him to be about alone, and that it would be kinder to him to catch and cage him,—the general view with which the world regards enthusiasts.

He heard, he understood; he knew that they did not mean to help him, these men with the steel weapons and the huge steeds, but that they meant to shut him up in a prison—he, little free-born, forest-fed Findelkind. He wrenched himself out of the soldier's grip, as the rabbit wrenches itself out of the jaws of the trap even at the cost of leaving a limb behind, shot between the horses' legs, doubled like a hunted thing, and spied a refuge. Opposite the avenue of gigantic poplars and pleasant stretches of grass shaded by other bigger trees, there stands a very famous church, famous alike in the annals of history and of art,—the church of the Franciscans, that holds the tomb of Kaiser Max, though, alas! it holds not his ashes, as his dying desire was that it should. The church stands here, a noble, sombre place, with the Silver Chapel of Philippina Wessler adjoining it, and in front the fresh cool avenues that lead to the river and broad water-meadows and the grand Hall road bordered with the painted stations of the Cross.

There were some peasants coming in from the country driving cows, and some burghers in their carts, with fat, slow horses; some little children were at play under the poplars and the elms; great dogs were lying about on the grass; everything was happy and at peace, except the poor throbbing heart of little Findelkind, who thought the soldiers were coming after him to lock him up as mad, and ran and ran as fast as his trembling legs would carry him, making for sanctuary, as, in the old bygone days that he loved, many a soul less innocent than his had done. The wide doors of the Hofkirche stood open, and on the steps lay a black-and-tan hound, watching no doubt for its master or mistress, who had gone within to pray. Findelkind, in his terror, vaulted over the dog, and into the church tumbled headlong.

It seemed quite dark, after the brilliant sunshine on the river and the grass; his forehead touched the stone floor as he fell, and as he raised himself and stumbled forward, reverent and bareheaded, looking for the altar to cling to when the soldiers should enter to seize him, his uplifted eyes fell on the great tomb.

The tomb seems entirely to fill the church, as, with its twenty-four guardian figures around it, it towers up in the twilight that reigns here even at midday. There are a stern majesty and grandeur in it which dwarf every

other monument and mausoleum. It is grim, it is rude, it is savage, with the spirit of the rough ages that created it; but it is great with their greatness, it is heroic with their heroism, it is simple with their simplicity.

As the awestricken eyes of the terrified child fell on the mass of stone and bronze, the sight smote him breathless. The mailed warriors standing around it, so motionless, so solemn, filled him with a frozen, nameless fear. He had never a doubt that they were the dead arisen. The foremost that met his eyes were Theodoric and Arthur; the next, grim Rudolf, father of a dynasty of emperors. There, leaning on their swords, the three gazed down on him, armoured, armed, majestic, serious, guarding the empty grave, which to the child, who knew nothing of its history, seemed a bier; and at the feet of Theodoric, who alone of them all looked young and merciful, poor little desperate Findelkind fell with a piteous sob, and cried, "I am not mad! Indeed, indeed, I am not mad!"

He did not know that these grand figures were but statues of bronze. He was quite sure they were the dead, arisen, and meeting there, around that tomb on which the solitary kneeling knight watched and prayed, encircled, as by a wall of steel, by these his comrades. He was not frightened, he was rather comforted and stilled, as with a sudden sense of some deep calm and certain help.

Findelkind, without knowing that he was like so many dissatisfied poets and artists much bigger than himself, dimly felt in his little tired mind how beautiful and how gorgeous and how grand the world must have been when heroes and knights like these had gone by in its daily sunshine and its twilight storms. No wonder Findelkind of Arlberg had found his pilgrimage so fair, when if he had needed any help he had only had to kneel and clasp these firm, mailed limbs, these strong cross-hilted swords, in the name of Christ and of the poor.

Theodoric seemed to look down on him with benignant eyes from under the raised visor; and our poor Findelkind, weeping, threw his small arms closer and closer around the bronze knees of the heroic figure, and sobbed aloud, "Help me, help me! Oh, turn the hearts of the people to me, and help me to do good!"

But Theodoric answered nothing.

There was no sound in the dark, hushed church; the gloom grew darker over Findelkind's eyes; the mighty forms of monarchs and of heroes grew

dim before his sight. He lost consciousness, and fell prone upon the stones at Theodoric's feet; for he had fainted from hunger and emotion.

When he awoke it was quite evening; there was a lantern held over his head; voices were muttering curiously and angrily; bending over him were two priests, a sacristan of the church, and his own father. His little wallet lay by him on the stones, always empty.

"Boy of mine! were you mad?" cried his father, half in rage, half in tenderness. "The chase you have led me!—and your mother thinking you were drowned!—and all the working day lost, running after old women's tales of where they had seen you! Oh, little fool, little fool! What was amiss with Martinswand, that you must leave it?"

Findelkind slowly and feebly rose, and sat up on the pavement, and looked up, not at his father, but at the knight Theodoric.

"I thought they would help me to keep the poor," he muttered, feebly, as he glanced at his own wallet. "And it is empty,—empty."

"And are we not poor enough?" cried his father, with natural impatience, ready to tear his hair with vexation at having such a little idiot for a son. "Must you rove afield to find poverty to help, when it sits cold enough, the Lord knows, at our own hearth? Oh, little ass, little dolt, little maniac, fit only for a madhouse, talking to iron figures and taking them for real men! What have I done, O heaven, that I should be afflicted thus?"

And the poor man wept, being a good affectionate soul, but not very wise, and believing that his boy was mad. Then, seized with sudden rage once more, at thought of his day all wasted, and its hours harassed and miserable through searching for the lost child, he plucked up the light, slight figure of Findelkind in his own arms, and, with muttered thanks and excuses to the sacristan of the church, bore the boy out with him into the evening air, and lifted him into a cart, which stood there with a horse harnessed to one side of the pole, as the country-people love to do, to the risk of their own lives and their neighbours'. Findelkind said never a word; he was as dumb as Theodoric had been to him; he felt stupid, heavy, half blind; his father pushed him some bread, and he ate it by sheer instinct, as a lost animal will do; the cart jogged on, the stars shone, the great church vanished in the gloom of night.

As they went through the city toward the riverside along the homeward way, never a word did his father, who was a silent man at all times, address

to him. Only once, as they jogged over the bridge, he spoke.

"Son," he asked, "did you run away truly thinking to please God and help the poor?"

"Truly I did!" answered Findelkind, with a sob in his throat.

"Then thou wert an ass!" said his father. "Didst never think of thy mother's love and of my toil? Look at home."

Findelkind was mute. The drive was very long, backward by the same way, with the river shining in the moonlight, and the mountains half covered with the clouds.

It was ten by the bells of Zirl when they came once more under the solemn shadow of grave Martinswand. There were lights moving about his house, his brothers and sisters were still up, his mother ran out into the road, weeping and laughing with fear and joy.

Findelkind himself said nothing.

He hung his head.

They were too fond of him to scold him or to jeer at him; they made him go quickly to his bed, and his mother made him a warm milk posset, and kissed him.

"We will punish thee tomorrow, naughty and cruel one," said his parent. "But thou art punished enough already, for in thy place little Stefan had the sheep, and he has lost Katte's lambs,—the beautiful twin lambs! I dare not tell thy father tonight. Dost hear the poor thing mourn? Do not go afield for thy duty again."

A pang went through the heart of Findelkind, as if a knife had pierced it. He loved Katte better than almost any other living thing, and she was bleating under his window childless and alone. They were such beautiful lambs, too!—lambs that his father had promised should never be killed, but be reared to swell the flock.

Findelkind cowered down in his bed, and felt wretched beyond all wretchedness. He had been brought back; his wallet was empty; and Katte's lambs were lost. He could not sleep.

His pulses were beating like so many steam-hammers; he felt as if his body were all one great throbbing heart. His brothers, who lay in the same chamber with him, were sound asleep; very soon his father and mother

snored also, on the other side of the wall. Findelkind was alone wide awake, watching the big white moon sail past his little casement, and hearing Katte bleat.

Where were her poor twin lambs?

The night was bitterly cold, for it was already far on in autumn; the rivers had swollen and flooded many fields, the snow for the last week had fallen quite low down on the mountainsides.

Even if still living, the little lambs would die, out on such a night without the mother or food and shelter of any sort. Findelkind, whose vivid brain always saw everything that he imagined as if it were being acted before his eyes, in fancy saw his two dear lambs floating dead down the swollen tide, entangled in rushes on the flooded shore, or fallen with broken limbs upon a crest of rocks. He saw them so plainly that scarcely could he hold back his breath from screaming aloud in the still night and answering the mourning wail of the desolate mother.

At last he could bear it no longer: his head burned, and his brain seemed whirling round; at a bound he leaped out of bed quite noiselessly, slid into his sheepskins, and stole out as he had done the night before, hardly knowing what he did. Poor Katte was mourning in the wooden shed with the other sheep, and the wail of her sorrow sounded sadly across the loud roar of the rushing river.

The moon was still high.

Above, against the sky, black and awful with clouds floating over its summit, was the great Martinswand.

Findelkind this time called the big dog Waldmar to him, and, with the dog beside him, went once more out into the cold and the gloom, whilst his father and mother, his brothers and sisters, wore sleeping, and poor childless Katte alone was awake.

He looked up at the mountain and then across the water-swept meadows to the river. He was in doubt which way to take. Then he thought that in all likelihood the lambs would have been seen if they had wandered the river way, and even little Stefan would have had too much sense to let them go there. So he crossed the road and began to climb Martinswand.

With the instinct of the born mountaineer, he had brought out his crampons with him, and had now fastened them on his feet; he knew every

part and ridge of the mountains, and had more than once climbed over to that very spot where Kaiser Max had hung in peril of his life.

On second thoughts he bade Waldmar go back to the house. The dog was a clever mountaineer, too, but Findelkind did not wish to lead him into danger. "I have done the wrong, and I will bear the brunt," he said to himself; for he felt as if he had killed Katte's children, and the weight of the sin was like lead on his heart, and he would not kill good Waldmar, too.

His little lantern did not show much light, and as he went higher upwards he lost sight of the moon. The cold was nothing to him, because the clear still air was that in which he had been reared; and the darkness he did not mind, because he was used to that also; but the weight of sorrow upon him he scarcely knew how to bear, and how to find two tiny lambs in this vast waste of silence and shadow would have puzzled and wearied older minds than his. Garibaldi and all his household, old soldiers tried and true, sought all night once upon Caprera in such a quest, in vain.

If he could only have awakened his brother Stefan to ask him which way they had gone! but then, to be sure, he remembered, Stefan must have told that to all those who had been looking for the lambs from sunset to nightfall. All alone he began the ascent.

Time and again, in the glad spring-time and the fresh summer weather, he had driven his flock upwards to eat the grass that grew, in the clefts of the rocks and on the broad green alps. The sheep could not climb to the highest points; but the goats did, and he with them. Time and again he had lain on his back in these uppermost heights, with the lower clouds behind him and the black wings of the birds and the crows almost touching his forehead, as he lay gazing up into the blue depth of the sky, and dreaming, dreaming, dreaming.

He would never dream any more now, he thought to himself. His dreams had cost Katte her lambs, and the world of the dead Findelkind was gone for ever: gone were all the heroes and knights; gone all the faith and the force; gone every one who cared for the dear Christ and the poor in pain.

The bells of Zirl were ringing midnight. Findelkind heard, and wondered that only two hours had gone by since his mother had kissed him in his bed. It seemed to him as if long, long nights had rolled away, and he had lived a hundred years.



He did not feel any fear of the dark calm night, lit now and then by silvery gleams of moon and stars. The mountain was his old familiar friend, and the ways of it had no more terror for him than these hills here used to have for the bold heart of Kaiser Max. Indeed, all he thought of was Katte,—Katte and the lambs. He knew the way that the sheep-tracks ran; the sheep could not climb so high as the goats; and he knew, too, that little Stefan could not climb so high as he. So he began his search low down upon Martinswand.

After midnight the cold increased; there were snow-clouds hanging near, and they opened over his head, and the soft snow came flying along. For himself he did not mind it, but alas for the lambs!—if it covered them, how would he find them? And if they slept in it, they were dead.

It was bleak and bare on the mountain-side, though there were still patches of grass such as the flocks liked, that had grown since the hay was cut. The frost of the night made the stone slippery, and even the irons gripped it with difficulty; and there was a strong wind rising like a giant's breath, and blowing his small horn lantern to and fro.

Now and then he quaked a little with fear,—not fear of the night or the mountains, but of strange spirits and dwarfs and goblins of ill repute, said to haunt Martinswand after nightfall. Old women had told him of such things, though the priest always said that they were only foolish tales, there being nothing on God's earth wicked save men and women who had not clean hearts and hands. Findelkind believed the priest; still, all alone on the side of the mountain with the snowflakes flying around him, he felt a nervous thrill that made him tremble and almost turn backward. Almost, but not quite; for he thought of Katte and the poor little lambs lost—and perhaps dead—through his fault.

The path went zigzag and was very steep; the Arolla pines swayed their boughs in his face; stones that lay in his path unseen in the gloom made him stumble. Now and then a large bird of the night flew by with a rushing sound; the air grew so cold that all Martinswand might have been turning to one huge glacier. All at once he heard through the stillness—for there is nothing so still as a mountainside in snow—a little pitiful bleat. All his terrors vanished; all his memories of ghost-tales passed away; his heart gave a leap of joy; he was sure it was the cry of the lambs. He stopped to listen more surely. He was now many score of feet above the level of his

home and of Zirl; he was, as nearly as he could judge, half-way as high as where the cross in the cavern marks the spot of the Kaiser's peril. The little bleat sounded above him, very feeble and faint.

Findelkind set his lantern down, braced himself up by drawing tighter his old leathern girdle, set his sheepskin cap firm on his forehead, and went toward the sound as far as he could judge that it might be. He was out of the woods now; there were only a few straggling pines rooted here and there in a mass of loose-lying rock and slate; so much he could tell by the light of the lantern, and the lambs by the bleating, seemed still above him.

It does not, perhaps, seem very hard labour to hunt about by a dusky light upon a desolate mountainside; but when the snow is falling fast,—when the light is only a small circle, wavering, yellowish on the white,—when around is a wilderness of loose stones and yawning clefts,—when the air is ice and the hour is past midnight,—the task is not a light one for a man; and Findelkind was a child, like that Findelkind that was in heaven.

Long, very long was his search; he grew hot and forgot all fear except a spasm of terror lest his light should burn low and die out. The bleating had quite ceased now, and there was not even a sigh to guide him; but he knew that near him the lambs must be, and he did not waver or despair.

He did not pray; praying in the morning had been no use; but he trusted in God, and he laboured hard, toiling to and fro, seeking in every nook and behind each stone, and straining every muscle and nerve, till the sweat rolled in a briny dew off his forehead, and his curls dripped with wet. At last, with a scream of joy, he touched some soft close wool that gleamed white as the white snow. He knelt down on the ground, and peered behind the stone by the full light of his lantern; there lay the little lambs,—two little brothers, twin brothers, huddled close together, asleep. Asleep? He was sure they were asleep, for they were so silent and still.

He bowed over them, and kissed them, and laughed, and cried, and kissed them again. Then a sudden horror smote him; they were so very still. There they lay, cuddled close, one on another, one little white head on each little white body,—drawn closer than ever together, to try and get warm.

He called to them, he touched them, then he caught them up in his arms, and kissed them again, and again, and again. Alas! they were frozen and dead. Never again would they leap in the long green grass, and frisk with

each other, and lie happy by Katte's side; they had died calling for their mother, and in the long, cold, cruel night, only death had answered.

Findelkind did not weep, or scream, or tremble; his heart seemed frozen, like the dead lambs.

It was he who had killed them.

He rose up and gathered them in his arms, and cuddled them in the skirts of his sheepskin tunic, and cast his staff away that he might carry them, and so, with their weight, set his face to the snow and the wind once more, and began his downward way.

Once a great sob shook him; that was all. Now he had no fear.

The night might have been noonday, the snow-storm might have been summer, for aught that he knew or cared.

Long and weary was the way, and often he stumbled and had to rest; often the terrible sleep of the snow lay heavy on his eyelids, and he longed to lie down and be at rest, as the little brothers were; often it seemed to him that he would never reach home again. But he shook the lethargy off him, and resisted the longing, and held on his way; he knew that his mother would mourn for him as Katte mourned for the lambs. At length, through all difficulty and danger, when his light had spent itself, and his strength had well-nigh spent itself too, his feet touched the old highroad. There were flickering torches and many people, and loud cries around the church, as there had been four hundred years before, when the last sacrament had been said in the valley for the hunter-king in peril above.

His mother, being sleepless and anxious, had risen long before it was dawn, and had gone to the children's chamber, and had found the bed of Findelkind empty once more.

He came into the midst of the people with the two little lambs in his arms, and he heeded neither the outcries of neighbours nor the frenzied joy of his mother; his eyes looked straight before him, and his face was white like the snow.

"I killed them," he said, and then two great tears rolled down his cheeks and fell on the little cold bodies of the two little dead brothers.

Findelkind was very ill for many nights and many days after that.

Whenever he spoke in his fever he always said, "I killed them!"

Never anything else.

So the dreary winter months went by, while the deep snow filled up lands and meadows, and covered the great mountains from summit to base, and all around Martinswand was quite still, and now and then the post went by to Zirl, and on the holy-days the bells tolled; that was all. His mother sat between the stove and his bed with a sore heart; and his father, as he went to and fro between the walls of beaten snow from the wood-shed to the cattle-byre, was sorrowful, thinking to himself the child would die, and join that earlier Findelkind whose home was with the saints.

But the child did not die.

He lay weak and wasted and almost motionless a long time; but slowly, as the springtime drew near, and the snows on the lower hills loosened, and the abounding waters coursed green and crystal clear down all the sides of the hills, Findelkind revived as the earth did, and by the time the new grass was springing, and the first blue of the gentian gleamed on the alps, he was well.

But to this day he seldom plays and scarcely ever laughs. His face is sad, and his eyes have a look of trouble.

Sometimes the priest of Zirl says of him to others, "He will be a great poet or a great hero some day." Who knows?

Meanwhile, in the heart of the child there remains always a weary pain, that lies on his childish life as a stone may lie on a flower.

"I killed them!" he says often to himself, thinking of the two little white brothers frozen to death on Martinswand that cruel night; and he does the things that are told him, and is obedient, and tries to be content with the humble daily duties that are his lot, and when he says his prayers at bedtime always ends them so:

"Dear God, do let the little lambs play with the other Findelkind that is in heaven."

\*\*\* END OF THE PROJECT GUTENBERG EBOOK FINDELKIND \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

*This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.*

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.



1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

#### 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.